Question 1: What is PIPEDA?

The Personal Information Protection and Electronic Documents Act (PIPEDA) is a federal Canadian privacy law. It sets the rules for how private-sector organizations may collect, use, and disclose personal information during commercial activity.

PIPEDA was first introduced in the House of Commons in October 1998 as Bill C-54. It was reintroduced as Bill C-6 in October 1999 and received Royal Assent on April 13, 2000. The Act took effect in stages starting January 1, 2001, and became fully effective on January 1, 2004 (Office of the Privacy Commissioner of Canada [OPC], 2000, 2013).

PIPEDA exists to protect individuals' privacy while still allowing businesses to collect and use information for legitimate purposes. As technology and online shopping have grown, organizations have gained access to large amounts of personal information. PIPEDA helps ensure that businesses handle this information responsibly and that individuals keep control over how it is used.

The Act is intended to protect individuals, including customers and consumers, whose personal information is collected, used, or shared by organizations. It also protects employee personal information when the employer is a federally regulated business. Personal information includes details that can identify a person, such as a name, address, financial information, medical records, and other identifying details.

PIPEDA applies across Canada to private-sector organizations involved in commercial activities. However, Alberta, British Columbia, and Quebec have provincial privacy laws considered substantially similar to PIPEDA, so those laws generally apply to activities taking place entirely within those provinces. In Ontario, PIPEDA generally applies to private-sector commercial activities, while provincial legislation covers certain health information. PIPEDA continues to apply to commercial activities involving personal information that crosses provincial or national borders and to federally regulated businesses throughout Canada (OPC, n.d.).

Businesses subject to PIPEDA include retailers, financial institutions, online companies, and other private organizations. Federally regulated organizations, such as banks, airlines, telecommunications companies, and transportation businesses, must also follow the Act.

PIPEDA sets out ten fair information principles: accountability, identifying purposes, obtaining consent, limiting collection, limiting use and disclosure, accuracy, safeguards, openness, individual access, and allowing individuals to challenge an organization's privacy practices. Organizations must collect information only for appropriate purposes, protect it with proper security, and explain how it is used. Individuals also have the right to access their personal information, request corrections, and complain to the Privacy Commissioner if they believe their privacy rights have been violated (OPC, 2025).

Overall, PIPEDA creates a balance between the needs of businesses and individuals' right to privacy.

Question 2: Two Investigation Case Summaries

Case 1: Investigation into Home Depot of Canada Inc. (2023)

This investigation concerned Home Depot sharing customers' personal information with Facebook (now Meta) without proper consent. The issue began when a customer discovered that Meta had records of many of his in-store purchases at Home Depot.

The investigation found that Home Depot was sending customers' hashed email addresses and purchase information to Meta through a tool called Offline Conversions. This happened when customers provided their email addresses at checkout to receive electronic receipts. The information allowed Meta to connect purchases with Facebook accounts and helped Home Depot measure the effectiveness of its

advertisements. However, Meta could also use the information for its own purposes, including targeted advertising.

The Office of the Privacy Commissioner determined that Home Depot's privacy policy did not clearly explain this information-sharing practice. Customers would not reasonably expect that providing an email address for a receipt would result in their purchase information being shared with Meta. Therefore, Home Depot should have obtained clear, express consent before sharing the information.

The complaint was found to be well-founded and resolved. Home Depot discontinued its use of Meta's Offline Conversions tool in October 2022 and agreed to follow the Commissioner's recommendations if it decided to restart the practice (OPC, 2023).

Source: https://www.priv.gc.ca/en/opc-actions-and-decisions/investigations/investigations-into-businesses/2023/pipeda-2023-001/

Case 2: Investigation into Location Tracking by the Tim Hortons App (2022)

This investigation examined how the Tim Hortons mobile application collected location information from users' phones. The issue became public after an individual discovered that the application had recorded his location more than 2,700 times in less than five months, even when the application was not open.

The investigation found that Tim Hortons collected precise GPS location information, sometimes every few minutes. This information could be used to determine users' home and work locations, identify when they were travelling, and track visits to competing businesses. The company originally intended to use the information for targeted advertising but did not end up using it for that stated purpose.

The privacy authorities concluded that collecting such extensive location information was unnecessary and disproportionate to the intended benefits. They also found that users had not provided valid consent because the application's explanations suggested that location information would only be collected while the app was open.

As an outcome, Tim Hortons permanently stopped collecting this location data in August 2020 and removed the tracking software in September 2020. The company also agreed to delete the remaining information, subject to the removal of legal restrictions, and establish a privacy management program. The investigation was found to be well-founded and conditionally resolved (OPC, 2022).

Source: https://www.priv.gc.ca/en/opc-actions-and-decisions/investigations/investigations-into-businesses/2022/pipeda-2022-001

Question 3: Do I Feel More Confident About Canada's Online Privacy Protection?

After learning about PIPEDA and reading these investigation cases, I feel more confident that the Canadian government is taking steps to protect people's online privacy. However, I do not believe that personal information is completely safe.

The Home Depot investigation showed that businesses cannot simply assume customers agree to share their information with third parties. Providing an email address to receive a receipt does not automatically mean that a customer agrees to have their purchase history shared with a social media company. Similarly, the Tim Hortons investigation showed that allowing an application to access location services does not mean users have agreed to constant location tracking, especially when the application is closed.

These cases make me more confident because they show that the Office of the Privacy Commissioner investigates complaints, identifies privacy violations, and recommends corrective actions. They also show that businesses can be held accountable when they fail to respect people's privacy.

However, I also believe there are still weaknesses. From my own personal experience, I have often downloaded applications and quickly clicked "accept" on the privacy terms without reading them, not realizing how much data I was giving away. Many people do not know exactly what information their applications collect or how businesses share it with other companies. Some privacy practices may remain unnoticed until someone investigates or reports them.

Overall, I believe PIPEDA is an important protection for Canadians, but more awareness, transparency, and enforcement are necessary. People should also be careful about the permissions they give applications and the personal information they share online.

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